

**Before the
FEDERAL MARITIME COMMISSION**

DOCKET NO. 24-07

Impact Products, LLC *et al.* v. CMA CGM S.A.

**RESPONDENT CMA CGM S.A.'S
MOTION FOR CONFIDENTIAL TREATMENT
OF ITS MOTION TO EXCLUDE**

Respondent CMA CGM S.A. (“CMA”), by counsel, pursuant to 46 C.F.R §§ 502.69 and 502.5(b), moves for confidential treatment of Exhibit 1 to its Motion to Exclude Expert Opinions of John D. McCown (“Motion to Exclude”), and states as follows in support thereof:

Exhibit 1 to CMA’s Motion to Exclude contains confidential, proprietary, and commercially sensitive rates, charges, and other information. The specific rates and charges for CMA’s demurrage and detention are not publicly available and cannot be determined through external sources. Disclosure of this business information would result in significant prejudice and harm to CMA. Accordingly, this information is subject to the “Confidential Information” designation in the Protective Order entered July 31, 2024, requiring CMA to file both public and confidential versions with its Motion to Dismiss.

For the foregoing reasons, CMA respectfully requests that:

1. Exhibit 1 to its Motion to Exclude be kept confidential; and
2. CMA be allowed to submit both a confidential and a redacted public version of the material for which it seeks confidential protection pursuant to 46 C.F.R. § 502.5(a)(2).

Dated: August 30, 2024

Respectfully submitted,

/s/ K. Barrett Luxhoj

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CERTIFICATE OF SERVICE

I certify that on the 30th day of August 2024, a true copy of the foregoing was served by electronic mail on all counsel of record as follows:

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